

ATTEMPTING LAW QUESTIONS

As a law student, it is very important for you to be able to differentiate between **PROBLEM QUESTIONS** from **DIRECT/ESSAY QUESTIONS**. Your ability to spot the difference will determine which of the **RULES** you'll apply in answering the particular question before you. As you know, there is the IRAC Rule and there's another known as the IDBC Rule. My focus now will be on IRAC.

IRAC is the appropriate formula used in answering Law Problem Questions. Each letter in "IRAC" stands for a part of how your answer should be. Now what is Problem Question and why is it called Problem Question ?

A Problem Question is a scenario based question where the lecturer gives you a passage (scenario) of what happened and then ask you to resolve the problem (issue) between the parties involved. Questions of this nature are known as Problem Questions and the formula you must use is IRAC. So whenever you see a passage or scenario and at the end you see something like:

- advise the parties...

- advise Mr. A...

- identify the issues and advise the parties...

- can the defence avail the defendant... etc, just know that it is a problem question.

As I said earlier, IRAC is an acronym. It means:

I — Issue(s)

R — Rule

A — Application

C — Conclusion/Advise.

THE ISSUE – Issue is simply the legal problem that occurred in the question. The areas of conflict between the parties. What is that thing that the parties are contending for or disagreeing about. You must spot where there is differences or conflict of interest or rights between the parties in the question.

Your issue must be raised in the form of a question by starting with the phrase — "**Whether or not...**" {this phrase must be there}.

Note also that some questions may carry more than one issue.

The RULE – The Rule is where you state the position of the law. What does the law say concerning the issue or issues you have raised. (Before that, you can give one or two definitions of some important concepts in the question). Your RULE should be based on AUTHORITIES, ranging from the higher authorities to the lower authority in the following order:

1. **Statutory Authorities** - Applicable Laws of the Country whether Federal, State or Local Government laws
2. **Judicial Authorities** - Relevant cases that have been decided by the courts. I mean cases that are applicable or relevant to the question before you.
3. **Juristic Authorities** - Learned Authors.

I strongly advise you not to formulate or manufacture any authority where there's none or if you cannot remember any. Do not cite a case or law that does not exist or is not applicable or relevant to what you're writing. It is better to leave the sleeping dog rest.

(Also take note of exceptions to the Rule...very important) — this has same process as the rule.

APPLICATION – The Application is the part of your answer where you relate the Rule (that is, the position of the law and authorities) to the question before you. You can start your application by using phrases like:

- In application to the instant/present question...
- In applying the above principles of law to the present question... {other ones dey sha}.

After the application, then you can advise the parties.

ADVICE – Advise who needs to be advised. Just give your advice to the required party or parties using your knowledge of the law which you have already stated above. The advise can be like:

- I advise Mr A that...

- I advise the parties....

- It is my humble advice...

{it all depends on the instructions given by the lecturer}. NOTE!!! - sometimes the lecturer may merely ask you to give your opinion. You must stick to the instructions, and you're done with question one.

On the other hand, DIRECT QUESTIONS (aka ESSAY QUESTIONS) is more of discussion based. These questions comes with words like:

- Discuss...
- Comment...
- what is...
- Write short note on...
- Explain..... {etc}

So you're expected to discuss what you know about the given topic, using the IDBC formula which I believe you know by now. But you must not write out of point. For emphasis, IDBC means:

I – Introduction

D – Definition

B – Body of work (explanations and illustrations)

C – Conclusion.